

UTILITY BILLING ADDENDUM

[THIS FORM MAY BE USED FOR SUBMETERING, ALLOCATION (RUBS), OR A COMBINATION OF SUBMETERING AND ALLOCATION. IT MAY ALSO BE USED WHEN ONLY ONE OR MORE UTILITIES ARE SUBMETERED OR ALLOCATED AND THE REST ARE BILLED DIRECTLY TO THE RESIDENT BY THE UTILITY OR SERVICE PROVIDER.]

Addendum Date: _____ ["Management"] ☐ as Owner of

☐ As Agent for the Owner of _____

["Property Name"] enters into this Utility Billing Addendum to the Rental Contract with _____

["Resident"], pertaining to House / Unit No. _____ located at _____

[Address]. This addendum is part of the Rental Contract dated _____ [Date of Lease] and amends the utility provisions of the Rental Contract.

Important Disclosure Regarding Management's Right to Select the Natural Gas Marketer (Provider). Resident (the Tenant) authorizes Management (the Landlord) to act as Resident's agent for the limited purpose of selecting the Resident's natural gas marketer; to authorize the natural gas marketer to obtain credit information on the Resident, if required by the marketer; and to enroll the Resident on the marketer's standard variable price plan for which the Resident is eligible, unless the Resident chooses another price plan for which he or she is eligible. Resident acknowledges that Management may have a business relationship with the natural gas marketer that may provide for a financial or other benefit to Management in exchange for the Resident's enrollment with the Marketer.

1. Utilities Are Billed as Additional Charges. The monthly rent due under the Rental Contract does NOT include charges for any utilities provided to the house unless specifically provided otherwise in the Rental Contract or this Addendum. Resident is solely responsible for paying the cost of all utilities and services as separate charges. Resident must pay for all utilities and services each month in addition to the amount of the base monthly rent. This addendum explains how the Resident will be billed for certain utilities by Management. Other utilities will be billed directly to the Resident from the utility provider. Payment for utilities is due as additional rent.

A. Electricity. Electricity will be billed:

☐ to Management and then to Resident ☐ Directly to Resident by the Utility Provider.

The name of the Utility Provider is: _____

The name of the Billing Provider is: _____

1. **Method of Calculating Charges.** Resident's Pro-Rata Share will be based on: _____

- a. Metering; or
- b. Estimated Usage Using an Allocation Formula; or
- c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
- d. Actual cost.

2. **Amount of Charges and Due Date.** The amount of the monthly charge for electricity is a:

- ☐ a. FIXED AMOUNT which ☐ WILL ☐ will NOT be billed in the Amount of \$ _____
- ☐ b. VARIABLE AMOUNT which WILL BE billed each month.

The amount billed is due each month on the _____ day of the month; and is payable at the office of:

☐ Management ☐ Independent Billing Contractor ☐ Utility Provider named above.

3. **Shared or Property Usage.** The Resident's share of charges for electricity:

☐ DOES ☐ DOES NOT include an allocable portion of shared or property-wide usage.

4. **Other Charges.** Resident shall be responsible for paying the following fees in connection with this account:

- ☐ a. Account Establishment Fee \$ _____
- ☐ b. Monthly Administrative Fee \$ _____
- ☐ c. Monthly Service Fee \$ _____

B. Natural Gas. Natural Gas will be billed:

☐ to Management and then to Resident ☐ Directly to Resident by the Utility Provider.

The name of the Utility Provider is: _____

The name of the Billing Provider is: _____

1. **Method of Calculating Charges.** Resident's Pro-Rata Share will be based on: _____

- a. Metering; or
- b. Estimated Usage Using an Allocation Formula; or
- c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
- d. Actual cost.

2. **Amount of Charges and Due Date.** The amount of the monthly charge for natural gas is a:

- ☐ a. FIXED AMOUNT which ☐ WILL ☐ will NOT be billed in the Amount of \$ _____
- ☐ b. VARIABLE AMOUNT which WILL BE billed each month.

The amount billed is due each month on the _____ day of the month; and is payable at the office of:

☐ Management ☐ Independent Billing Contractor ☐ Utility Provider named above.

3. **Shared or Property Usage.** The Resident's share of charges for natural gas:

☐ DOES ☐ DOES NOT include an allocable portion of shared or property-wide usage.

4. **Other Charges.** Resident shall be responsible for paying the following fees in connection with this account:

- ☐ a. Account Establishment Fee \$ _____
- ☐ b. Monthly Administrative Fee \$ _____
- ☐ c. Monthly Service Fee \$ _____

C. Water/Waste Water. Water/Waste Water will be billed:

☐ to Management and then to Resident ☐ Directly to Resident by the Utility Provider.

The name of the Utility Provider is: _____

The name of the Billing Provider is: _____

1. **Method of Calculating Charges.** Resident's Pro-Rata Share will be based on: _____

- a. Metering; or
- b. Estimated Usage Using an Allocation Formula; or
- c. Combination of Metering and Estimated Usage Using an Allocation Formula; or
- d. Actual cost.

2. **Amount of Charges and Due Date.** The amount of the monthly charge for water and waste water is a:

- ☐ a. FIXED AMOUNT which ☐ WILL ☐ will NOT be billed in the Amount of \$ _____
- ☐ b. VARIABLE AMOUNT which WILL BE billed each month.

The amount billed is due each month on the _____ day of the month; and is payable at the office of:

☐ Management ☐ Independent Billing Contractor ☐ Utility Provider named above.

3. **Shared or Property Usage.** The Resident's share of charges for water and waste water:

☐ DOES ☐ DOES NOT include an allocable portion of shared or property-wide usage.

4. **Other Charges.** Resident shall be responsible for paying the following fees in connection with this account:

- ☐ a. Account Establishment Fee \$ _____
- ☐ b. Monthly Administrative Fee \$ _____
- ☐ c. Monthly Service Fee \$ _____
- ☐ d. Monthly Storm Water Fee \$ _____
- ☐ e. Final Account Billing Fee \$ _____

2. **Explanation of the Method for Metering or Allocating Utilities.** Metering is based on reading of devices which actually measure the utility or service usage. Allocation is based on a formula that is tied to Resident's pro-rata estimated usage using such factors as the number of bedrooms and baths, number of persons occupying the house, and other factors. Where allocation applies, the formula is based on actual billing and usage. A combination of metering and allocation uses both methods. Allocation formulas are adjusted periodically to take into account changes in the charges by utilities to Management. Actual Cost is the amount charged for and billed for the service or utility. Resident acknowledges that management has disclosed the methodology for billing utilities and services prior to signing the Rental Contract and this Addendum.
3. **Late Fee.** A late fee shall be due on any payment which is not received by the _____ day after the payment's due date. Resident shall pay a late fee of \$ _____ or _____ percent of the amount billed for any utility or service payment received after its due date.
4. **Additional Charges.** Resident shall also pay account establishment and/or monthly service or maintenance billing fees as provided above.
5. **Change of Billing Methods or Utility Provider.** Management shall have the right to change the method of billing or calculating utility and service charges by giving Resident 30 days' written notice of the change. Management shall have the right to begin billing for services or utilities not previously billed. Unless provided for above, Resident is responsible for establishing and paying for any other service or utility. Management shall have the right to designate or change the Utility or Service Provider at any time.
6. **Adjustments of Bills.** Management shall have the right to adjust any billing by increasing or decreasing the amounts due in subsequent months.
7. **Default.** Resident's failure to pay any utility or service bill, late fee, account establishment charge, monthly administrative fee, or monthly service fee is a material breach of this addendum and the Rental Contract. Management has the right to refuse payment of any monthly basic rental amount unless also accompanied by a payment for any utility or service bill which is due or past due. Management shall have the same rights and remedies to enforce a default under this addendum as it has in the Rental Contract.
8. **Disclosure.** Billing and collection of fees and charges for some utilities may be performed on Management's behalf by an "Independent Billing Contractor" who is a third party vendor. Management will disclose the name, address, and phone number of any utility or service billing company upon written request of Resident.
9. **First Month's Pro-Rated Billing.** Resident shall pay a pro-rated amount of any monthly charge based on the date Resident moved into the house. If the amount due is a Fixed Amount, payment shall be due at the time of signing the lease. If the amount is based on a Variable Amount Which Is Billed each month, at Management's option the pro-rated amount shall be due either along with the next month's rent or as an estimated pro-rated amount at the time of signing the lease. If Resident abandons the house, Resident will be responsible for all charges due through the time it takes for Management to obtain possession of the house. Resident agrees that any unpaid charges which remain due after vacating the house or delivering possession to Management may be deducted from any security deposit. If there is no security deposit then the last month's billing shall be due when billed.
10. **Estimated Charges.** Resident agrees that no representation or warranty has been made regarding estimated usage or charges for Variable Billing. Resident may not rely on any verbal estimate of usage or charges for any Variable Billing.

- 11. Service Interruption.** Management is not liable for any loss or damages Resident may incur due to outages, interruptions, or fluctuations in utilities or services to the house unless such was directly and proximately caused by Management's negligence. Resident may not withhold rent or utility and service payments because of an interruption in any utilities or services.
- 12. Access to Read Meter.** If billing involves reading a meter, Resident agrees to provide Management or its Independent Billing Contractor access to the house, if necessary.
- 13. Severability.** If any portion or provision of this addendum is declared to be invalid or unenforceable, then the remaining portions shall be severed, survive, and remain enforceable. The court shall interpret and construe the remaining portion of this addendum so as to carry out the intent of the parties that Resident is responsible for payment of all utilities or services used.
- 14. Incorporation by Reference.** The provisions of the Rental Contract are by reference incorporated herein.

Name of Owner or Management Company

By: _____
Signature of Owner or Management Company

As: _____ **(Title)**

Resident _____

Resident _____

Resident _____

Resident _____

Resident _____

Resident _____